

Stereo. H C J D A 38.
JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.7684/2024

Muhammad Fahad **Versus** Inspector General of Police etc.

J U D G M E N T

Date of Hearing:	21.04.2025
petitioner by:	Mr. Humayoun Syed Rasool, Advocate.
respondents by:	Malik Muhammad Bakhsh Khakhi, Assistant Advocate General with Sajjad, ASI.

Anwaar Hussain, J. The grievance of the petitioner is that he participated in the recruitment process for the post of Constable and was placed at Serial No.82 of the final merit list against a total of 161 available posts. However, the petitioner was non-suited on the ground that an FIR bearing No. 74/2024, dated 10.02.2024, was registered against him at Police Station City Darya Khan, District Bhakkar, and the said fact was concealed in his Application Form.

2. Learned counsel for the petitioner submits that, no doubt the petitioner did not disclose the registration of above-referred criminal case in the Application Form, the most pivotal aspect has been overlooked by the department as the Application Form was submitted on 11.02.2024, whereas the aforementioned FIR was lodged on 10.02.2024 at 10:10 PM in District Bhakkar. The petitioner, being a resident of Muzaffargarh and having applied for the post of Constable in that district, was evidently unaware of the registration of the FIR during the late hours of the previous night.

3. Report and parawise comments have been filed by the police department, wherein it has been contended that, in terms of the Police Rules, 1934 (“**the Rules**”), read with the Standing Order No.

6 of 2015 (“**the Standing Order**”), the assessment of character in relation to the suitability of a candidate for recruitment into the police force is of paramount importance and the department is duly empowered to scrutinize the antecedents of candidates, and where any candidate conceals the fact of registration of a criminal case, his integrity becomes questionable, hence, such a candidate is not entitled to any favourable consideration.

4. Arguments heard. Record perused.

5. This Court is well aware that public employment—whether in the police department or any other government department—must be strictly based on merit, and it is imperative that individuals of the highest integrity are appointed to serve the public. Similarly, the authority of the police department to scrutinize the antecedents of candidates, in terms of the Rules and/or the Standing Order, is neither questioned nor undermined and if concealment of any fact particularly with reference to registration of criminal case is found, such candidate can be disqualified as held in case reported *Mirza Shahzeb v. City Police Officer, Police Line, Rawalpindi and 4 others* [2023 PLC (CS) 749]. However, the case of the petitioner is clearly distinguishable from the dictum laid down by the learned Full Bench of this Court in the case of *Mirza Shahzeb supra*. The concern lies in the manner in which powers are exercised by the Police Department to draw the conclusion that concealment has been made by a candidate while interpreting and applying the Rules.

6. Suffice to observe that the discretion to assess the integrity must be exercised judiciously and, in a manner, consistent with principles of fairness, equity and the constitutional guarantees. Disclosure of facts must be assessed through the lens of reasonableness. There is a clear distinction between non-disclosure

and wilful concealment, and the latter presupposes the existence of knowledge—actual or constructive—at the time when disclosure is expected. There must be a direct and conscious nexus between what was allegedly concealed or not disclosed and what the individual knew or, in the circumstances, reasonably ought to have known. In the present case, the time gap between the registration of the FIR at 10:10 PM on 10.02.2024 in one District and the submission of the application on the very next morning, on 11.02.2024, in another District, makes it humanly impossible for the petitioner to have acquired such knowledge, let alone formed an intent to suppress it. It defies logic and fairness to expect that the petitioner could have known about the registration of an FIR lodged late at night in another District, mere hours before he submitted his application in the following morning. The law does not demand the impossible. Penalizing a candidate in such circumstances not only ignores the essence of wilful concealment but also defeats the principle of *actus non facit reum nisi mens sit rea*—the act is not culpable unless the mind is guilty. Therefore, in the absence of any culpable mental state, the inference of concealment is wholly unsustainable. In the absence of any evidence suggesting that the petitioner had knowledge of the case at the relevant time, no element of concealment can be imputed to him. To do so would not only be irrational, but would also offend the principles of natural justice and proportionality. The Indian Supreme Court in case reported as *Avtar Singh v. Union of India & others* (2016) 8 SCC 471, held that mere non-disclosure of a criminal case does not automatically justify rejection of a candidate unless such non-disclosure is wilful, deliberate, and material. The Court recognized the practical limitations in knowledge and held that a candidate cannot be penalized for not disclosing facts that were not within his knowledge

at the time of submitting the application. The entire report submitted by the police department fails to address a fundamental question: how was the petitioner reasonably expected to be aware of the registration of a criminal case in another district, at 10:10 PM on the night of 10.02.2024, when he proceeded to file his application the very next day on 11.02.2024? The respondents have not pointed to any mechanism, official communication, or circumstance that could have reasonably placed the petitioner on notice of the said registration of criminal case within few hours. This complete silence undermines the adverse inference sought to be drawn against the petitioner.

7. This Court is of the opinion that the Rules or the Standing Order referred hereinabove should not be construed so broadly or rigidly so as to defeat the legitimate expectations of the meritorious candidates, particularly, when there is no material suggesting any wilful concealment of factum of registration of criminal case. Misinterpretation or overreach in applying the Rules risks exclusion of deserving individuals, and ultimately undermines the very standard of integrity, the Rules seek to uphold. The selection process ought to reward merit and fairness and not penalize the candidates for circumstances entirely beyond their control.

8. In view of the above discussion, this petition has merits and hence, **allowed**. The respondents are directed to forthwith process the case of the petitioner for appointment as Constable.

(ANWAAR HUSSAIN)
Judge

Approved for reporting.

Judge

Akram